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LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

SEPTEMBER 8,
2026

MOTION FOR TRIAL SETTING PREFERENCE

Los Angeles Superior Court Case # 25CHCV03601

Motion

Filed: 7/27/26

MOVING PARTIES: Plaintiffs Laszlo Molnar, by
and through his Successor-in-Interest, Linda Molnar; Linda Molnar; Thomas
Molnar; and Michael Molnar (collectively, "Plaintiffs")

RESPONDING PARTY: Defendants Transformer
Opco, LLC; and Oakmont Management Group, LLC dba Ivy Park at West Hills, and
Lidia Cauchi (collectively, "Defendants")

NOTICE:

OK

RELIEF

REQUESTED: An order
for trial setting preference.

TENTATIVE

RULING: The motion
is granted.

EVIDENTIARY

OBJECTIONS: Defendants'
evidentiary objections are overruled.

BACKGROUND

This is an elder abuse and wrongful death action brought by Plaintiffs, the spouse/successor-in-interest and surviving children of decedent Laszlo Molnar ("Decedent"), against Defendants, the owners/operators and Executive Director of Ivy Park at West Hills ("Ivy Facility"), a Residential Care Facility for the Elderly. (Compl. ¶¶ 3–10.) Plaintiffs allege that Decedent was a resident of the memory care unit at Ivy Facility, and on 4/6/25, around 3:00 a.m., ingested liquid dish soap in the facility kitchen and later passed away in the hospital on 4/13/25. (Id. at ¶¶ 34–43.) Plaintiffs allege that Decedent's death was caused by Defendants' failure to properly monitor/supervise Decedent despite their knowledge that Decedent had dementia and "was repeatedly getting up at night and moving things from the kitchen." (Id. at ¶¶ 23–32, 44.)

On 10/8/25, Plaintiffs filed their complaint, alleging against Defendants the following causes of action: (1) Elder Abuse/Neglect; (2) Negligence; (3) Negligent Hiring, Supervision, & Retention; and (4) Wrongful Death. On 11/14/25, Defendants filed their answer.

On 7/27/26, Plaintiffs filed the instant motion. On 8/26/26, Defendants filed their opposition thereto. On 9/1/26, Plaintiffs filed their reply.

ANALYSIS

A party over 70 years old is entitled to a trial setting preference if the party can establish both that (1) she has a substantial interest in the action as a whole; and (2) her health is such that a preference is necessary to prevent prejudicing the party's interest in the litigation. (Code Civ. Proc. § 36, subd. (a).) "Where a party meets the requisite standard for calendar preference under subdivision (a), preference must be granted. No weighing of interests is involved." (Fox v. Superior Court (2018) 21 Cal.App.5th 529, 535.)

"A party may file and serve a motion for preference supported by a declaration of the moving party that all essential parties have been served with process or have appeared." (Code Civ. Proc. § 36, subd. (c)(1).) "Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record. Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party." (Id. at subd. (f).)

Here, Plaintiffs seek trial preference under Code of Civil Procedure, subdivision (a), asserting that Plaintiff Linda Molnar ("Linda") "is 82 years old and suffers from polymyalgia rheumatica requiring ongoing bi-monthly monitoring and treatment due to the severity of the condition. She additionally has a history of hyperlipidemia, hypertension, anemia, and stroke." (Pls.' Mot. 6:24–27.) "In light of Plaintiff's advanced age and documented medical conditions, there exists a substantial concern that continued delay will prejudice her interests by impairing her ability to fully participate in trial and obtain timely resolution of her claims." (Id. at 6:27–7:2.) Plaintiffs also proffer Linda's medical records to substantiate their arguments. (Ex. 2 to Decl. of Alessandra Horii.)

In opposition, "Defendants do not dispute Linda's age or substantial interest in this action. Plaintiffs have not, however, established the required medical necessity." (Defs.' Opp. 2:26–27.) Defendants further argue that "Plaintiffs' counsel states, on information and belief, that Linda's age and health place her at risk of being unable to testify and/or survive the pendency of this action. However, that conclusion is unsupported by any treating-physician opinion regarding Linda's life expectancy, likelihood of incapacity, anticipated cognitive decline, or

inability to participate at the presently scheduled trial date.” (Id. at 3:14–18.) “At most, Plaintiffs have established that Linda is an 82-year-old woman with chronic medical conditions requiring ongoing treatment and monitoring. They have not established that her health currently threatens her ability to participate in this action or that a trial within 120 days is necessary to prevent prejudice.” (Id. at 3:24–27.)

In reply, Plaintiffs argue that the proffered medical records show that “Linda is an 82-year-old woman who suffers from polymyalgia rheumatica requiring chronic steroid therapy and bi-monthly monitoring, with a documented history of persistent pain, fatigue, bloating, medication side effects, and difficulty tolerating treatment, including prednisone-related side effects severe enough to require medication adjustments. ... The rheumatology records confirm that, at her most recent visits, Linda remained in pain, was unable to taper below 5 mg of daily prednisone, and continued to have difficulty rising from a chair. ... She has osteoporosis that comes with a high risk for fractures for which she has been placed on fall precautions. Her history also includes hyperlipidemia, hypertension, anemia, and a prior stroke. ... These are precisely the kinds of age-related, chronic, and progressive conditions that, over the nearly twenty-month wait until the April 3, 2028, trial date, create a substantial risk of prejudice to an 82-year-old's ability to participate in and testify at trial. Nothing more is required under subdivision (a).” (Pls.’ Reply 4:11–22.)

The Court agrees. “A motion under subdivision (a) may be supported by nothing more than an attorney's declaration ‘based upon information and belief as to the medical diagnosis and prognosis of any party.’” (Fox, 21 Cal.App.5th at 534.) Here, as in Fox, Linda’s medical conditions have not been genuinely disputed by Defendants. In Fox, the Court of Appeal found that “the evidence shows that while [the plaintiff] is currently able to participate in a trial, she has good reason for concern that will not be the case for much longer as her health deteriorates.” (21 Cal.App.5th at 535.) Here, the Court similarly finds that Plaintiffs have sufficiently shown a basis for trial preference under Code of Civil Procedure section 36, subdivision (a). Accordingly, the motion is granted.

CONCLUSION

The motion is granted. Trial date to be discussed at the hearing.